

A MEASURE

PASSED BY

THE NATIONAL ASSEMBLY OF THE CHURCH OF ENGLAND

To amend the Rules for the Representation of the Laity,
and in particular, to enlarge the subject matter of the
Rules in certain respects. [5th July, 1956]

1. From and after the commencement of this Measure the Rules for the Representation of the Laity contained in the Schedule to this Measure shall be substituted, in the Schedule to the Constitution, for the Rules for the Representation of the Laity contained in the Schedule to the Representation of the Laity Measure, 1929, and the Constitution shall have effect accordingly. Substitution
of new Rules
for the
Representation
of the Laity.

2.—(1) The Representation of the Laity Measure, 1929, is hereby repealed, and accordingly the Rules contained in the Schedule to that Measure shall cease to have effect. Repeals.

(2) The House of Laity (Co-opted Members) Measure, 1937, and the House of Laity Representation Regulation, 1923, are hereby repealed.

(3) Sections nine to fifteen of the Parochial Church Councils (Powers) Measure, 1921, and the Schedule to that Measure, are hereby repealed.

3.—(1) Without prejudice to the effect of section thirty-eight of the Interpretation Act, 1889, this Measure shall not affect any person's membership of the House of Laity or of any other body, or the tenure of any office, or the contents of any church electoral roll, until such membership is terminated, or such office is vacated, or such roll is revised, in accordance with the law in force after the commencement of this Measure. Savings and
transitional
provisions.

(2) Any rule, order, determination, resolution, decision, appointment, scheme or consent, or any ruling of a diocesan conference, in effect immediately before the commencement of this Measure under or for the purposes of any provision contained in the Rules hereby repealed, shall continue to have effect, so far as applicable, for the purposes of any corresponding provision contained in the Rules set out in the Schedule hereto, and may be revoked or varied as if made under the Rules last mentioned.

(3) Any body constituted under the Rules hereby repealed and in existence immediately before the commencement of this Measure shall be deemed to have been constituted under the corresponding provisions (if any) of the Rules set out in the

Schedule hereto, and its constitution may be revoked or varied accordingly.

(4) Where at the commencement of this Measure a person's name is on the church electoral roll of two or more parishes, he shall within six months from the date of such commencement select one of those parishes as the parish on the roll of which he desires his name to remain, and notify the councils of all the said parishes in writing of his selection. If he fails to make such a selection and to give such notices, he shall be treated as having elected that his name shall remain on the roll of the parish on which his name was last entered. The provisions of this subsection shall, however, be without prejudice to his right to have his name entered on the roll of any parish in accordance with the Rules for the Representation of the Laity in force after the commencement of this Measure.

Interpretation
of references
to the
Constitution.

4. The expression "this Constitution", where used in the Constitution, and the expression "the Constitution" where used in the Church of England Assembly (Powers) Act, 1919, shall include the Constitution as varied by this Measure.

Short title
commence-
ment and
extent.

5.—(1) This Measure may be cited as the Representation of the Laity Measure, 1956.

(2) This Measure shall come into operation on the first day of January, 1957.

(3) This Measure shall extend to the whole of the Provinces of Canterbury and York except the Channel Islands and the Isle of Man:

Provided that, if an Act of Tynwald so provides, this Measure shall extend to the Isle of Man subject to such modifications, if any, as may be specified in such Act of Tynwald.

SCHEDULE

RULES FOR THE REPRESENTATION OF THE LAITY

PRELIMINARY

Interpretation

1.—(1) In these rules—

“actual communicant member” means a person who has received Communion according to the use of the Church of England or of a church in communion therewith at least once within the twelve months preceding the date of his election or appointment;

“Council” means a parochial church council.

“Minister” means the incumbent or perpetual curate of a parish or a curate licensed under seal by the bishop to the charge of that parish;

“Parish” means an ecclesiastical parish or district, whether old or new, the Minister of which has a separate cure of souls therein, and includes—

(a) each parish which remains a separate parish, in cases where a scheme of union provides for the union of benefices but not of parishes; and

(b) any district which is constituted a “conventional district” for the cure of souls and has a separate curate licensed thereto;

“Public Worship” means public worship according to the rites and ceremonies of the Church of England.

“Ruri-decanal conference” means a ruri-decanal conference constituted for a rural deanery under rule 16 of these rules.

(2) Any reference in these rules to the laity shall be construed as a reference to persons other than Clerks in Holy Orders, and the expression “lay” in these rules shall be construed accordingly.

(3) In these rules words importing residence include residence of a regular nature but do not include residence of a casual nature.

(4) Any reference herein to “these rules” shall be construed as including a reference to the Appendices hereto.

Lay representation

2.—(1) The laity shall meet in parochial church meetings and be represented in—

(i) parochial church councils;

(ii) ruri-decanal conferences, where such conferences exist;

(iii) diocesan conferences; and

(iv) the House of Laity;

by persons of either sex (in these rules referred to as "representatives of the laity") who are actual communicant members of the Church of England of twenty-one years of age and upwards:

Provided that a Clerk in Holy Orders shall not be a representative of the laity.

(2) No person shall be elected as a representative of the laity on any of the said bodies unless either he has signified his consent or there is in the opinion of the meeting at which he is elected sufficient evidence of his willingness to serve.

(3) No person shall be disqualified from being elected as a representative of the laity—

(i) by the fact that he is not himself qualified to vote at the election at which he is elected (but this provision shall not apply to a representative of the laity on a parochial church council, who must be qualified to vote at such election); or

(ii) by the fact that he is also a member ex officio or otherwise of the body to which he is elected.

(4) No representative of the laity shall vacate his seat upon the body to which he has been elected by reason only of the fact that subsequently to his election he has become a member of that body ex officio.

CHURCH ELECTORAL ROLL

Formation, Revision and Publication

3.—(1) There shall be a church electoral roll (in these rules referred to as "the roll") in every parish. The roll shall be available for inspection by bona-fide inquirers.

(2) The persons entitled to have their names entered upon the roll of the parish shall be lay members of the Church of England, of either sex, of seventeen years of age and upwards who—

(a) are baptised and declare that they are members of the Church of England and that they do not belong to any religious body which is not in communion with the Church of England; and

(b) are resident in the parish, or, if not so resident, have habitually attended public worship in the parish during a period of six months prior to enrolment; and

(c) have signed the form of application for enrolment set out in Section I of Appendix I to these rules.

(3) No person shall be entitled to have his name on the roll of more than one parish at the same time;

Provided that where:—

(a) a person has the qualifications required under these rules for having his name on the roll of two parishes;

(b) his name is on the roll of one of those parishes;

(c) he applies in accordance with these rules to have his name entered on the roll of the other parish;

- (d) the councils of both parishes consent to his name being on the roll of both parishes ;

then, for so long as he retains the necessary qualifications, he shall be entitled to have his name on the roll of both the parishes concerned. The granting of such consent shall be in the discretion of the councils hereinbefore mentioned, and there shall be no right of appeal if it is withheld.

No person shall in any circumstances be entitled to have his name on the roll of more than two parishes at the same time.

(4) The roll shall, until a parochial church council has been constituted in a parish, be formed and revised by the minister and churchwardens (if any), and shall, after a council has been constituted, be kept and revised by or under the direction of the council. References in this rule to a council or to the secretary of a council shall, so far as may be necessary for giving effect to these rules, be construed as including references to the minister and churchwardens (if any).

(5) The names of persons who are entitled to have their names entered upon the roll of the parish shall, subject to the provisions of these rules, be from time to time added to the roll. No name shall be added to or removed from the roll except by the authority of the council and it shall be the duty of the council to keep the roll constantly up to date and to cause names to be added and removed as from time to time required by these rules.

(6) Subject to the provisions of this rule, a person's name shall as the occasion arises be removed from the roll if he—

- (a) has died ; or
- (b) signifies in writing his desire that his name should be removed ; or
- (c) becomes a member of any religious body which is not in communion with the Church of England ; or
- (d) ceases to reside in the parish, unless after so ceasing he continues habitually to attend public worship in the parish ; or
- (e) is not resident in the parish and has not attended public worship in the parish during the preceding six months, not having been prevented from doing so by illness or other sufficient cause ; or
- (f) at any time after the entry of his name on the roll has his name entered on the roll of another parish except in accordance with the proviso to paragraph (3) of this rule ; or
- (g) was not qualified to have his name entered on the roll at the time when it was entered.

(7) The removal of a person's name from the roll under any of the provisions of these rules shall be without prejudice to his right to have his name entered again, if he is entitled to do so.

(8) The roll shall where practicable contain a record of the address of every person whose name is entered on the roll, but a failure to comply with this requirement shall not prejudice the validity of any entry on the roll.

(9) The roll of a parish shall be revised annually by or under the direction of the council. Notice of the intended revision in the form set out in Section 2 of Appendix I to these rules shall be affixed by the minister or under his direction on or near the principal door of the parish church and of every other building in the parish licensed for public worship (not being a private chapel) and remain so affixed for a period of not less than fourteen days before the commencement of the revision. The revision shall be completed not less than fifteen days or more than twenty-eight days before the annual parochial church meeting.

(10) Upon every revision all enrolments or removals from the roll which have been effected since the date of the last revision (or since the formation of the roll, if there has been no previous revision) shall be reviewed, and such further enrolments or removals from the roll as may be required shall be effected.

(11) After the completion of the revision, a copy of the roll as revised shall, together with a list of the names removed from the roll since the last revision (or since the formation of the roll, if there has been no previous revision), be published by being exhibited continuously for not less than fourteen days before the annual parochial church meeting on or near to the principal door of the parish church in such manner as the council shall appoint. No name shall be entered upon or removed from the roll during the period in any year between the completion of the revision and the close of the annual parochial church meeting.

(12) Upon the alteration of the boundaries of any parishes any necessary consequential transfers from the roll of one of such parishes to that of another of them shall be effected by or under the authority of the councils concerned, and no application for enrolment consequential upon any such alteration shall be required.

Procedural provisions relating to entry and removal of names

4.—(1) When a person applying for enrolment on the roll of any parish signifies his desire that his name should be removed from the roll of any other parish, notice of that fact shall be sent by the council receiving the application to the council of that other parish.

(2) When the name of any person is removed from the roll of a parish owing to his having become resident in another parish, notice of that fact shall, whenever possible, be sent by the council of the first-mentioned parish to the council of the last-mentioned parish.

(3) When a person wishes to have his name on the rolls of two parishes in accordance with paragraph (3) of rule 3 of these rules, his name must first be on the roll of one of those two parishes. He must then :—

(a) apply to the council of that parish for its consent to his name being entered on the roll of the other parish concerned ; and

(b) if such consent is given, apply for entry on the roll of the other parish concerned.

The council of that other parish shall then decide whether or not to give its consent to his name being on the roll of both parishes

and, if it does not give its consent, the application for entry on the roll of that parish shall be refused.

(4) For so long as the name of any person is on the roll of two parishes pursuant to paragraph (3) of rule 3 of these rules, a note to that effect shall be entered upon the roll of each of the parishes concerned. Where consent is given by the council of the parish to an application under sub-paragraph (a) of the preceding paragraph such note may be added immediately on the roll of that parish, but if so added, must be cancelled immediately on notification being given that the council of the other parish concerned has refused its consent to the name of the person in question being on the rolls of both parishes.

(5) The Forms set out in Section 3 of Appendix I to these rules shall be used for the purpose of this rule.

(6) An omission to comply with the requirements of this rule shall not disqualify any person whose name has been entered upon any roll.

ANNUAL PAROCHIAL CHURCH MEETINGS

When to be held

5.—(1) In every parish there shall be held not later in the year than the week following Easter week, the annual parochial church meeting (in these rules referred to as “the annual meeting”). All persons whose names are entered upon the roll of the parish shall be entitled to attend the annual meeting.

(2) Subject to these rules, clerks in holy orders who are resident in the parish or who, whether resident in the parish or not, are beneficed in or licensed to the parish, shall be entitled to attend the annual meeting and to take part in its proceedings.

(3) A clerk (other than the minister or licensed assistant curate of the parish) who is beneficed in or licensed to any other parish shall not be entitled to attend the annual meeting or to take any part in its proceedings: Provided that where a clerk has a general licence to officiate in a diocese, such general licence shall not of itself disqualify the clerk from attending the annual meeting or subject to these rules taking part in its proceedings.

(4) Save as provided by rule 7 of these rules no clerk in holy orders shall be entitled to nominate or vote at any election of parochial representatives of the laity.

Convening of Annual Parochial Church Meeting

6.—(1) The annual meeting shall be convened by the minister of the parish by a notice in the form set out in Section 4 of Appendix I to these rules affixed on or near to the principal door of the parish church, and of every other building licensed for divine service in the parish, for a period including the last two Sundays before the day of meeting.

(2) The annual meeting shall be held at such place on such date and at such hour as shall be directed by a previous annual meeting, or by the council (which may vary any direction given by a previous annual meeting), or in the absence of any such direction as shall be appointed by the minister.

(3) During a vacancy of the benefice or curacy or when the minister is absent or incapacitated by illness or any other cause, the vice-chairman of the council, or if there shall be no vice-chairman, or if he shall be unable or unwilling to act, the secretary or or some other person appointed by the council shall have all the powers vested in the minister under this rule.

(4) The annual meeting shall be held at a place within the parish unless the council decide otherwise.

Chairman

7. The minister, if present, or if he is not present, the vice-chairman of the council, or, if he also is not present, a chairman chosen by the annual meeting shall preside thereat. In case of an equal division of votes, the chairman of the meeting shall have a second or casting vote ; but no clerical chairman shall have a vote (except a casting vote) in the election of the parochial representatives of the laity.

Business

8.—(1) The annual meeting shall receive from the council, and shall be free to discuss—

- (a) A copy or copies of the roll ;
- (b) An annual report on the proceedings of the council and on the financial affairs of the parish ;
- (c) The audited accounts of the council for the year ending on the 31st December immediately preceding the meeting ;
- (d) An audited statement of the funds and property, if any, remaining in the hands of the council at the said date ; and
- (e) A report upon the fabric, goods and ornaments of the church or churches of the parish.

(2) The council shall cause a copy of the said audited accounts and the said statement to be affixed at or near the principal door of the parish church at least seven days before the annual meeting.

(3) Such accounts and statement shall be submitted to the annual meeting for approval. If approved, they shall be signed by the chairman of the meeting, who shall then deliver them to the council for publication and the council shall forthwith cause them to be published and affixed on or near the principal door of the parish church and at such other conspicuous place or places in the parish as the council think appropriate.

(4) The annual meeting shall elect parochial representatives of the laity—

- (a) to the diocesan conference, unless the diocesan conference shall otherwise determine ;
- (b) to the ruri-decanal conference (where it exists), in accordance with the constitution of the ruri-decanal conference as settled by the diocesan conference under rule 16 of these rules ; and
- (c) to the council.

The persons so elected shall be persons who are qualified to be representatives of the laity by virtue of rule 2 of these rules, and the elections shall be held subject to and in accordance with the rules hereinafter contained relating thereto.

(5) The functions of the annual meeting with respect to the election of sidesmen are set out in rule 11 hereof.

(6) The annual meeting shall appoint the auditors to the council.

(7) Any person entitled to attend the annual meeting may ask any question about parochial church matters, or bring about a discussion of any matter of parochial or general church interest, by moving a general resolution or by moving to give any particular recommendation to the council in relation to its duties.

(8) The annual meeting shall have power to adjourn, and to determine its own rules of procedure.

(9) The secretary of the council (or another person appointed by the meeting in his place) shall act as a clerk of the annual meeting, and shall record the minutes thereof.

SPECIAL PAROCHIAL CHURCH MEETINGS

9.—(1) In addition to the annual meeting, the minister of a parish may convene a special parochial church meeting, and he shall do so on receipt of a written requisition signed by not less than one-third of the lay members of the council.

(2) The provisions of these rules relating to the convening and the conduct of the annual meeting and to the persons entitled to attend that meeting shall, with the necessary modifications, apply to a special parochial church meeting.

CHURCHWARDENS AND SIDESMEN

Churchwardens

10.—(1) In every parish to which section twelve of the New Parishes Measure, 1943, applies, churchwardens shall be appointed in accordance with the provisions of that section.

(2) Subject to paragraph (1) of this rule, in every parish in which, until the passing of the Parochial Church Councils (Powers) Measure, 1921, one or more of the churchwardens was elected by the vestry, such churchwarden or churchwardens shall be elected by a joint meeting of the vestry (or of the persons who, if the parish were an ancient parish, would be entitled to vote in vestry) and of the persons whose names are entered on the roll of the parish. Such meeting shall be convened as if it were a vestry meeting and shall be held under the same conditions as to chairmanship voting and demand of a poll as a vestry meeting, except that every person qualified to vote at such meeting shall be entitled to one vote only (other than the chairman's casting vote) on any question voted on at such meeting or at a poll held in connection therewith. The cost of a poll demanded by a candidate shall be borne by him.

(3) Without prejudice to existing qualifications, any person who is eligible for membership of the council shall be eligible as churchwarden.

Sidesmen

11.—(1) The sidesmen of the parish shall be elected by the annual meeting and the minister :

Provided that if the annual meeting and the minister are unable to agree, one half of the whole number of sidesmen shall be elected by the annual meeting, and one half shall be appointed by the minister.

(2) The sidesmen of the parish shall have all rights duties and liabilities heretofore belonging to sidesmen by virtue of their office.

(3) No person whose name is not on the roll shall be eligible as a sidesman, but all persons whose names are on the roll shall be eligible.

PAROCHIAL CHURCH COUNCILS

Members

12.—(1) The parochial church council shall consist of—

(i) the minister of the parish ;

(ii) the following ex-officio members, namely—

(a) all licensed assistant curates of the parish ;

(b) the churchwardens, being actual communicant members of the Church of England whose names are on the roll of the parish ; and

(c) all persons whose names are on the roll of the parish and who are lay members of any ruridecanal conference, or of any diocesan conference, or of the Church Assembly.

(iii) such number of representatives of the laity as the annual meeting may decide, and so that the number determined may be altered from time to time by a resolution passed at any annual meeting, but such resolution shall not take effect before the next ensuing annual meeting ; and

(iv) co-opted members, if the council so decides, not exceeding in number one-fifth of the representatives of the laity elected under the last preceding sub-paragraph of this paragraph and being either in Holy Orders or actual lay communicant members of the Church of England of either sex, of twenty-one years of age or upwards. The term of office of a co-opted member shall be until the conclusion of the next annual meeting ; but without prejudice to his being co-opted on subsequent occasions for a similar term, subject to and in accordance with the provisions of these Rules.

(2) Subject as hereinafter provided, any elected representative of the laity whose name is removed from the roll under rule 3 shall forthwith cease to be a member of the council, without prejudice to any right the council may have to make him a co-opted member. Where a person's name is removed from the roll under paragraph (6) (b) of rule 3, he shall not cease to be a member of the council by virtue of that fact unless the council so resolves.

General provisions relating to parochial church councils

13. The provisions contained in Appendix II to these rules shall have effect with respect to parochial church councils, and with respect to the officers, the meetings and the proceedings thereof :

Provided that a parochial church council may, with the consent of the diocesan conference, vary the said provisions in their application to the council.

EXTRAORDINARY MEETINGS

14.—(1) On written representation made to the archdeacon by not less than one-third of the lay members of the council, or by one-tenth of the persons whose names are on the roll of the parish, and deemed by the archdeacon to have been made with sufficient cause, the archdeacon shall convene an extraordinary meeting of the council or an extraordinary parochial church meeting, and shall either take the chair himself or shall appoint a chairman to preside. The chairman, not being otherwise entitled to attend such meeting, shall not be entitled to vote upon any resolution before the meeting.

(2) At any such extraordinary meeting, when seven days' notice has been given of a motion that any representation relating to the conduct of the minister shall be made to the bishop of the diocese, the archdeacon may, in his discretion request the minister not to be present, but to make a communication in writing to the chairman. If such communication be made, it shall be read to the meeting.

(3) In any case where the archdeacon is himself the minister, any representation under paragraph (1) of this rule shall be made to the bishop, and in any such case the reference to the archdeacon in paragraphs 1 and 2 of this rule shall be construed as references to the bishop.

PAROCHIAL AND OTHER ELECTIONS*Elections to the Parochial Church Council*

15.—(1) The number of representatives of the laity to be elected in each parish to the council shall be determined in accordance with the provisions of rule 12 of these rules.

(2) Representatives of the laity on the council of a parish shall hold office from the date of their election until the conclusion of the next ensuing annual meeting of the parish :

Provided that the annual meeting may decide that one-third only (or the number nearest to one-third) of the representatives of the laity elected to the council shall retire from office in every year. In any case where it is so decided, the representatives of the laity to retire from office at each annual meeting shall be those who have been longest in office since last elected, and as between representatives of the laity elected on the same day, those to retire shall (unless they otherwise agree among themselves) be selected by lot. A representative of the laity shall in any event retire at the conclusion of the third annual meeting after that at which he was elected.

(3) A retiring representative of the laity in the council shall, if qualified, be eligible for re-election.

(4) In any parish where there are two or more churches or buildings licensed for public worship an annual meeting may frame or adopt a scheme for the election of representatives of the laity to the council in such manner as to secure due representation of the congregation of each such churches or buildings:

Provided that no such scheme shall be valid unless approved by at least two-thirds of the persons present and voting at the annual meeting, nor shall it become operative until the next ensuing annual meeting. Every such scheme shall, on its approval, be communicated to the secretary of the diocesan conference.

Election to and Composition of the Ruri-decanal Conference

16.—(1) The diocesan conference shall have power—

- (a) to decide in which rural deaneries (if in any) there shall be a ruri-decanal conference;
- (b) to settle the constitution of a ruri-decanal conference; and
- (c) to dissolve a ruri-decanal conference.

(2) In settling the constitution of a ruri-decanal conference, the diocesan conference shall inter alia lay down—

- (a) the minimum number of meetings to be held in a year;
- (b) the term of office of members of the conference; and
- (c) to whom returns of elections of members to the ruri-decanal conference shall be made.

Elections to Diocesan Conference

17.—(1) Unless the diocesan conference otherwise determines, the annual meeting of every parish shall elect such number of representatives of the laity to the conference as the conference shall from time to time appoint.

(2) In any diocese in which the diocesan conference determines that the representatives of the laity in that conference shall not be elected, or shall not be exclusively elected, at the annual meeting in every parish of the diocese, they shall be elected, according as the diocesan conference may determine, either—

- (i) by the elected representatives of the laity in each ruri-decanal conference voting in such manner as, subject to the provisions of the next succeeding rule, the ruri-decanal conference may determine; or
- (ii) partly at the annual meetings, and partly by the representatives of the laity in the rural-decanal conferences; or
- (iii) according to a scheme approved by the diocesan conference whereby parishes may be grouped for the purpose of jointly electing representatives of the laity to the conference; or
- (iv) according to a scheme approved by the diocesan conference combining two or more of the methods of election authorised by this rule.

(3) Representatives of the laity elected to the diocesan conference shall hold office for three years.

(4) No person shall be capable of sitting simultaneously for two separate seats as an elected representative of the laity in any one diocesan conference.

Method of Voting at the above Elections

18.—(1) At every election to the parochial church council, the ruri-decanal conference, and the diocesan conference, each person entitled to vote shall have as many votes as there are seats to be filled but may not give more than one vote to any one candidate.

(2) Where an equality of votes renders a casting vote necessary to decide the election, it shall be given by the person presiding over the election.

Conduct of Elections by the Annual Meeting

19.—(1) All candidates at elections of representatives of the laity by the annual meeting of a parish must be nominated and seconded by persons whose names are entered on the roll of the parish. A candidate may be nominated at the meeting or may be nominated before the meeting by notice in writing to the secretary of the council.

(2) If the number of candidates nominated is not greater than the number of seats to be filled, the candidates nominated shall forthwith be declared elected.

(3) If more candidates are nominated than there are seats to be filled, the election shall take place at the annual meeting, unless a poll is demanded by at least one-fifth of the voters present.

(4) If the election takes place at the meeting, votes may be given—

(a) on voting papers, which shall be in a form substantially similar to that set forth in Appendix III to these rules, and must be signed by the voter ; or

(b) if no person present objects thereto, by show of hands.

(5) If a poll is duly demanded, the annual meeting shall forthwith elect a person to preside over it, and the poll shall be conducted in the manner prescribed in Appendix III to these rules. The expenses of the poll shall be defrayed by the council.

(6) The result of an election by an annual meeting shall be announced as soon as practicable by the person presiding over the election, and a notice of the result shall in every case be affixed on or near to the principal door of the parish church and of every other building licensed for public worship in the parish, and shall bear the date on which the result is declared. Such notice shall remain affixed for not less than fourteen days. Returns of representatives elected to a ruri-decanal conference shall be sent to such person or persons as the diocesan conference may provide, and if representatives of the diocesan conference are elected by the annual meeting, returns of such representatives shall be sent to the secretary of the diocesan conference.

ELECTIONS TO THE HOUSE OF LAITY

20. The elected members of the House of Laity in the Church Assembly shall be elected every five years by the diocesan electors in the several diocesan conferences according to the principle of proportional representation as hereinafter provided.

Diocesan Electors

21.—(1) The diocesan electors in each diocese shall be—

- (i) the representatives of the laity for the time being in the diocesan conference ; and
- (ii) the lay ex-officio members of the diocesan conference.
- (iii) fifteen or any less number of teachers (not being in Holy Orders) selected by the other lay members of the diocesan conference in such manner as may be prescribed by the conference to represent the members of universities, university or training colleges, and school staffs in the diocese who are members of the Church of England. All the teachers so selected shall be for all other purposes members of the diocesan conference, and in section 5 (iii) of the Diocesan Conferences Regulation, 1935, the reference to rule 20 (3) of the Rules for the Representation of the Laity shall be construed as a reference to this subparagraph.

(2) In section 5 (iii) of the Diocesan Conferences Regulation, 1935, the words "or students" shall cease to have effect.

(3) Members of the Chamber of Laity appointed by the bishop under section 5 (iv) of the Diocesan Conferences Regulation, 1935, shall not be diocesan electors.

Basis of Representation

22.—(1) The number of members of the House of Laity to be elected for each diocese at a general election shall be based on the number of names on the rolls of the parishes in such diocese as revised in preparation for the annual meetings held in the year immediately preceding the year in which such general election ought to be held.

(2) In the year immediately preceding the year in which any general election to the House of Laity ought to be held—

- (a) the number of names upon the roll of each parish shall be certified to the secretary of the diocesan conference by the council of the parish not later than the 1st day of May ; and
- (b) the total number of names upon the rolls of the parishes in each diocese shall be certified to the secretary of the Church Assembly by the secretary of each diocesan conference not later than the 1st day of July.

(3) The certificate required to be given by a council under this rule may be signed by the chairman or vice-chairman or the secretary of the council.

(4) A copy of every certificate given by a council under this rule shall be affixed at or near to the principal door of the parish church when the original certificate is sent to the secretary of the diocesan conference, and shall remain so affixed for a period of not less than fifteen days.

(5) Any question arising as to the accuracy of any certificate given by a council under this rule shall be decided in such manner as the diocesan conference shall determine.

(6) Where a person's name is on the rolls of two parishes pursuant to paragraph (3) of rule 3 of these rules, his name shall be included once in respect of each of those parishes in all certificates given pursuant to paragraph (2) of this rule. Every such certificate shall include a special statement certifying how many of the total number of names included in the certificate relate to persons whose names are on the rolls of two parishes. The secretary of the Church Assembly shall adjust the total number of names certified for any diocese by deducting therefrom one-half of the number of names included in the special statement.

Number of Elected Members of the House of Laity

23.—(1) The number of elected members of the House of Laity to be elected by each diocese shall be fixed by resolution of the Church Assembly not later than the last day of November in the year immediately preceding the year in which the election ought to be held. Such numbers shall be fixed so as to be as nearly as possible proportionate to the total number of names certified for each diocese under rule 22 adjusted in accordance with the provisions of that rule.

(2) The number of members of the House of Laity to be elected by each diocese, when fixed by the Church Assembly as aforesaid, shall forthwith be communicated to the secretaries of the diocesan conferences.

Electoral Areas

24.—(1) Subject to any division of a diocese under this rule every diocese shall be an electoral area for the purposes of elections to the House of Laity.

(2) So far as is consistent with any rule made by the archbishop under paragraph (4) of rule 25 a diocesan conference may, for the purposes of any election, divide a diocese into two or more areas, and apportion the number of members of the House of Laity to be elected for the diocese among such areas, and the election shall be conducted in each area as if such area were a separate diocese. Where a diocese is so divided, a diocesan elector who is a representative of the laity shall vote in the area to which the body by which he was elected belongs, and a diocesan elector who is not a representative of the laity shall vote in such area as the diocesan conference may decide. Any such division shall remain in force until it is revoked by the diocesan conference.

Conduct of Elections

25.—(1) Subject to any directions given by the Church Assembly, an election to the House of Laity shall be carried out in each diocese during such a period between the first day of September and the fifteenth day of October (both inclusive) as shall be fixed by the bishop of the diocese.

(2) The presiding officer or officers in each diocese shall be appointed by the bishop.

(3) Every candidate must be nominated and seconded by diocesan electors qualified to vote in the area in which the candidate is seeking to be elected. All nominations shall be in writing and shall be sent to the presiding officer of the area, together with evidence of the candidate's consent to serve, on or before a date to be specified by the presiding officer. Such date shall not be earlier than the first day of September.

(4) If more candidates are nominated for any area than there are seats to be filled, the election shall be conducted by voting papers upon the principle of proportional representation by the method of the single transferable vote, under rules to be made from time to time by the archbishop of the province.

(5) A candidate or a person nominated by him has the right to be present at the counting of the votes, and the presiding officer of the area shall give notice to each candidate of the time and place at which the votes are to be counted.

(6) A full statement of the result of each election shall be furnished to every candidate within the area, and published in such manner as the bishop may approve.

(7) No person shall be capable of sitting in the House of Laity as an elected representative of the Laity for more than one diocese.

CO-OPTED MEMBERS OF THE HOUSE OF LAITY

26.—(1) The House of Laity shall have power to co-opt persons of either sex (in this rule referred to as "co-opted members") who are actual lay communicant members of the Church of England of twenty-one years of age or upwards to be members of the House of Laity :

Provided that—

(a) the co-opted members shall not at any time exceed ten in number ; and

(b) no person shall be qualified to become a co-opted member unless not less than two thirds of the members of the Standing Committee of the House of Laity shall have first consented to his being co-opted, either at a meeting of the Standing Committee or in writing.

(2) Except in regard to their appointment, the co-opted members shall have the same rights and be subject to the same rules and regulations as elected members :

Provided that no co-opted member shall, by reason only of his membership of the House of Laity, be a member of any parochial church council or of any ruri-decanal or diocesan conference.

(3) Co-opted members shall continue to be members of the House of Laity until the next election of that House, or for such shorter period as the House of Laity may determine.

(4) The House of Laity may make standing orders for regulating the procedure of and incidental to the appointment of co-opted members and otherwise for carrying this rule into effect.

APPEALS

27.—(1) Subject to the provisions of paragraph (3) of rule (3) of these rules there shall be a right of appeal by any person aggrieved against—

- (a) any enrolment, or refusal of enrolment, on the roll of a parish ;
- (b) the removal of any name, or the refusal to remove any name, from the roll of a parish ;
- (c) the allowance or disallowance of any vote given or tendered under the foregoing rules ;
- (d) the result of any election held or purporting to be held under the foregoing rules.

(2) In the case of an appeal arising out of an election to the House of Laity, notice of the appeal shall be given in writing to the bishop. In any other case, notice of the appeal shall be given in writing to the rural dean, or, if there be no rural dean, to the archdeacon. Notices under this paragraph shall be given—

- (a) in the case of an appeal against an enrolment or a refusal of an enrolment, or in the case of an appeal against the removal of any name or the refusal to remove any name from the roll, not later than fourteen days after the date of the annual meeting next following such enrolment or refusal of enrolment, or removal or refusal to remove ;
- (b) in the case of an appeal against the allowance or disallowance of a vote, not later than fourteen days after such allowance or disallowance ;
- (c) in the case of an appeal against the result of an election, not later than fourteen days after the result thereof has been announced by the presiding officer.

(3) In each diocese there shall be a lay electoral commission constituted by the diocesan conference. The bishop or the archdeacon or the rural dean, as the case may be, shall, unless the parties agree to a settlement of their dispute, refer any appeal under this rule to the commission. The commission shall appoint two or more of its members to consider and decide any appeal so referred, and the decision of such members shall be final.

(4) For the purpose of such consideration and decision, the members of the commission so appointed shall consider all the relevant circumstances, and shall be entitled to inspect all documents and papers relating to the subject-matter of the appeal, and be furnished with all information respecting the same which they may require. They shall give to the appellant an opportunity of appearing in person before them.

(5) The commission appointed in any diocese under this rule shall have power at any time to extend the time within which a notice of appeal is given.

SUPPLEMENTARY
Casual Vacancies

28.—(1) Elections to fill casual vacancies among representatives of the laity shall be conducted in the same manner as ordinary elections, a special meeting of the electing body being held, if necessary, for the purpose. Such elections shall, where possible, be held at such times as will enable all casual vacancies among representatives of the laity who are diocesan electors to be filled at the time of every election to the House of Laity, but so that no such election shall be invalid by reason of any casual vacancies not having been so filled up.

(2) Elections to fill casual vacancies shall be held as soon as reasonably practicable after the vacancy has occurred, and elections to fill a casual vacancy in the House of Laity shall be completed within six months from the occurrence of the vacancy:

Provided that where a casual vacancy occurs in the House of Laity and a general election to that House is due to begin at a later date in the same year, such casual vacancy shall not be filled unless the bishop so directs.

(3) Any person elected to fill a casual vacancy shall hold office only for the unexpired portion of the term of office of the representative in whose place he is elected.

(4) The resignation of a member of a parochial church council (by reason of its being a corporate body) requires the consent of the council. Members of the House of Laity, the diocesan conference, and the ruri-decanal conference may resign at will.

Notices

29. Any notice or other document required or authorised to be sent or given under these rules shall be deemed to have been duly sent or given if sent through the post addressed to the person to whom it is required or authorised to be sent or given at that person's last known address.

Revocation and Variation of Rules, etc.

30. Subject to the provisions of these rules any power conferred by these rules to make approve frame or adopt any rule, order, determination, decision, appointment or scheme, or to give any consent or settle any constitution, or to prescribe the manner of doing any thing, shall be construed as including a power, exercisable in like manner and subject to the like conditions, to revoke or vary any such rule, order, determination, decision, appointment, scheme, consent or constitution, or anything so prescribed.

Special Provisions

31.—(1) In the carrying out of these rules in any diocese the bishop of such diocese shall have power—

- (a) to make provision for any matter not herein provided for;
- (b) to appoint a person to do any act in respect of which there has been any neglect or default on the part of any person or body charged with any duty under these rules;

- (c) so far as may be necessary for the purpose of giving effect to the intentions of these rules, to extend or alter the time for holding any meeting or election or to modify the procedure laid down by these rules in connection therewith ;
 - (d) in any case in which there has been no valid election, to direct a fresh election to be held, and to give such directions in connection therewith as he may think necessary ; and
 - (e) in any case in which any difficulty arises, to give any directions which he may consider expedient for the purpose of removing the difficulty.
- (2) The powers of the bishop under this rule shall not enable him—
- (a) to validate any thing that was invalid at the time when it was done ;
 - (b) to give any direction that is contrary to any resolution of the Church Assembly.
- (3) No proceedings shall be invalidated by the use of a form which differs from that prescribed by these rules if the form which has in fact been used is to a substantially similar effect. Any question as to whether the form which has been used is to a substantially similar effect shall be determined by the bishop.
- (4) In the case of an omission in any parish to prepare or maintain a roll or to form or maintain a council or to hold the annual meeting, the rural dean upon such omission being brought to his notice shall ascertain and report to the bishop the cause thereof.
- (5) During a vacancy in a diocesan see the powers by these rules conferred upon a bishop of the diocese shall be exercisable by the guardian of the spiritualities.

Rule 3 (2) (c).

APPENDIX I

SECTION 1

APPLICATION FOR ENROLMENT ON CHURCH ELECTORAL ROLL
(Full Christian name and surname)I
(Full postal address)

of
 declare that I have attained the age of seventeen years and reside in the parish of and am a member of the Church of England and do not belong to any religious body which is not in communion with the Church of England.

I hereby apply to be entered on the Church Electoral Roll of the parish of in the diocese of
 (in which parish I am resident) *or* (in which parish for the period of six months last past I have habitually attended public worship).*

I declare that my name is not on the church electoral roll of any other parish.

OR

I declare that my name is not on the church electoral roll of any other parish except that of the parish of
 from which roll I desire my name to be removed.

OR

I declare that my name is not on the church electoral roll of any other parish except that of the parish of
 The parochial church council of that parish has given its consent to my name being on the rolls of both parishes, for so long as I retain the necessary qualifications.†

Signed

Date

* Strike out whichever of these is not applicable.

† The applicant should choose whichever of the three alternatives is applicable to his case, and he must strike out the other two. The third alternative should only be used where the applicant is already on the roll of another parish, and the parochial church council of that parish has given its consent to his being on the rolls of both parishes.

SECTION 2

Rule 3 (9).

FORM OF NOTICE OF REVISION OF CHURCH ELECTORAL ROLL

Diocese of

Parish of

* NOTE.—
 The Revision must be completed not less than 15 days or more than 28 days before the Annual Parochial Church Meeting.

Notice is hereby given that the Church Electoral Roll of the above parish will be revised by the Parochial Church Council,* beginning on, the day of 19.... and ending on, the day of 19.....

After such Revision, a copy of the Roll will forthwith be exhibited on, or near to, the principal door of the Parish Church for inspection.

Under the Rules for the Representation of the Laity the persons entitled to have their names entered upon the Roll are lay members of the Church of England of either sex of seventeen years of age and upwards, who—

- (a) are baptised and declare that they are members of the Church of England and that they do not belong to any religious body which is not in communion with the Church of England; and
- (b) are resident in the parish, or if not so resident have habitually attended public worship in the parish during a period of six months prior to enrolment; and
- (c) have signed the form of application for enrolment set out in Appendix I to the Rules for the Representation of the Laity.

Entry on the Rolls of two parishes at the same time is subject to special conditions. No person's name may be on the Rolls of more than two parishes at once.

Forms of application for enrolment can be obtained from the undersigned, and should be returned, if possible, in time for the Revision.

Any error discovered in the Roll should at once be reported to the undersigned.

† Not less
than 14 days'
notice must
be given.

Dated this †..... day of 19.....

.....

Secretary of the Council.

Address

SECTION 3

Form 1

Rule 4 (5).

NOTICE TO CANCEL ENTRY IN ANOTHER PARISH

To the Secretary of the
Parochial Church Council.

Please note that
of
who has applied for enrolment on the Church Electoral Roll of this parish, has signified his (or her) desire that his (or her) name should be removed from the Church Electoral Roll of your parish, and that his (or her) name should be removed accordingly.

Signed

Secretary of the
Parochial Church Council.

Date

Rule 4 (5).

Form 2

NOTICE OF REMOVAL TO ANOTHER PARISH

To the Secretary of the
Parochial Church Council.

Please note that
whose entry on the Church Electoral Roll of this parish has been
cancelled, owing to his having become resident in another parish, is
believed to be now resident at and may desire
to be entered on the Church Electoral Roll of your parish.

Signed

Secretary of the
Parochial Church Council.

Date

Rule 6 (1).

SECTION 4

NOTICE OF ANNUAL PAROCHIAL CHURCH MEETING

Parish of

The Annual Parochial Church Meeting will be held in
on day the day of
at

For the election of parochial representatives of the laity as
follows :—

*To the Diocesan Conference representatives,

*To the Ruri-decanal Conference representatives,

To the Parochial Church Council representatives.

For the election of sidesmen.

For the consideration of—

(a) A copy or copies of the Roll ;

(b) An Annual Report on the proceedings of the Council and
on the financial affairs of the parish ;

(c) The audited Accounts of the Council for the year ending on
the 31st of December immediately preceding the meeting ;

(d) An audited Statement of the funds and property of the
Council ;

(e) A Report upon the fabric, goods and ornaments of the church
or churches of the parish ;

and other matters of parochial or general Church interest.

All persons of either sex whose names are entered upon the Church
Electoral Roll of the parish (and such persons only) are entitled to
vote at the election of parochial representatives of the laity.

* Strike out if inapplicable.

Parochial representatives of the laity must be actual lay communicant members of the Church of England of either sex of twenty-one years of age and upwards, but, except in the case of Parochial Church Councils, need not be themselves on the Church Electoral Roll of the parish.

By Rule 8 it is provided that the Annual Meeting shall have power to adjourn and to determine its own rules of procedure.

Signed

**Minister of the Parish*

APPENDIX II

GENERAL PROVISIONS RELATING TO PAROCHIAL CHURCH COUNCILS Rule 13.

1.—(a) The minister of the parish shall be chairman of the council. Officers of the council.
(b) A lay member of the council shall be elected as vice-chairman of the council.

(c) During the vacancy of the benefice and when the chairman is incapacitated by absence or illness or any other cause the vice-chairman of the council shall act as chairman and have all the powers vested in the chairman.

(d) The council may appoint one of their number to act as secretary of the council. If no member is appointed so to act the council shall appoint some other fit person with such remuneration (if any) as they shall think fit. The secretary shall have charge of the electoral roll and of all documents relating to the current business of the council. He shall be responsible for keeping the minutes, shall record all resolutions passed by the council and shall keep the secretary of the diocesan conference informed as to his name and address.

(e) The council may appoint one or more of their number to act as treasurer solely or jointly. Failing such appointment, the office of treasurer shall be discharged jointly by such of the churchwardens as are members of the council, or, if there is only one such churchwarden by that churchwarden solely. No remuneration shall be paid to any person in respect of his appointment as treasurer.

(f) If auditors to the council are not appointed by the annual meeting, or if the auditors appointed by the annual meeting are unable or unwilling to act, auditors shall be appointed by the council. The remuneration (if any) of the auditors shall be paid by the council.

2. The council shall hold not less than four meetings in each year. Meetings shall be convened by the chairman and if not more than four meetings are held they shall be at quarterly intervals so far as possible. Meetings of council.

3. The chairman may at any time convene a meeting of the council. If he refuse or neglect to do so within seven days after a requisition for that purpose signed by not less than one-third of the members of the council has been presented to him those members may forthwith convene a meeting. Power to call meetings.

* Or "Vice-Chairman of the Parochial Church Council," or as the case may be. (See Rule 6 (3) of the Rules for the Representation of the Laity.)

Notices
relating to
meetings.

4.—(a) Except as provided in paragraph 8 of this Appendix at least ten clear days before any meeting of the council notice thereof specifying the time and place of the intended meeting and signed by or on behalf of the chairman of the council or the persons convening the meeting shall be posted at or near the principal door of the parish church.

(b) Not less than seven days before the meeting a notice thereof specifying the time and place of the meeting signed by or on behalf of the secretary shall be sent to every member of the council. Such notice shall contain the agenda of the meeting including any motion by any member of the council of which notice has been received by the secretary.

Chairman
at meetings.

5. Subject to the provisions of rule 14 of the Rules for the Representation of the Laity, the chair at a meeting of the council shall be taken—

(a) by the chairman of the council if he is present ;

(b) if the chairman of the council is not present, or his office is vacant, by the vice-chairman of the council if he is present :

Provided that at any such meeting the chairman or the vice-chairman of the council may, if he thinks it expedient to do so, vacate the chair either generally or for the purposes of any particular business.

Should neither the Chairman nor the Vice-Chairman be available to take the chair for any meeting or for any particular item on the agenda during a meeting then a Chairman shall be chosen by those members present from among their number and the person so chosen shall preside for that meeting or for that particular item.

Quorum and
agenda.

6. No business shall be transacted at any meeting of the council unless at least one-third of the members are present thereat and no business which is not specified in the agenda shall be transacted at any meeting except by the consent of three-quarters of the members present at the meeting.

Order of
business.

7. The business of a meeting of the council shall be transacted in the order set forth in the agenda unless the council by resolution otherwise determine.

Short notice
for emergency
meetings.

8. In case of sudden emergency or other special circumstances requiring immediate action by the council a meeting may be convened by the chairman of the council at not less than three days' notice in writing to the members of the council but the quorum for the transaction of any business at such meetings shall be a majority of the then existing members of the council and no business shall be transacted at such meeting except as is specified in the notice convening the meeting.

Place of
meetings.

9. The meetings of the council shall be held at such place as the council may direct or in the absence of such direction as the chairman may direct.

10. Subject to the foregoing provisions, any motion proposed by a member of the council present at a meeting and seconded by such a member shall be submitted to the meeting and shall be decided by a majority of votes of the members present and voting thereon. ^{Vote of majority to decide.}

11. In the case of an equal division of votes the chairman of the meeting shall have a second or casting vote. ^{Casting vote.}

12.—(a) The names of the members present at any meeting of the council shall be recorded in the minutes. ^{Minutes.}

(b) If one-fifth of the members present and voting on any resolution so require, the minutes shall record the names of the members voting for and against that resolution.

(c) Any member of the council shall be entitled to require that the minutes shall contain a record of the manner in which his vote was cast on any resolution.

(d) Members of the council shall have access to the minutes of all meetings, but no other person other than the bishop or a person authorised by him in writing, or the archdeacon, shall have access to the minutes without the authority of the council.

13. Any meeting of the council may adjourn its proceedings to such time and place as may be determined at such meeting. ^{Adjournments.}

14.—(a) The council shall have a standing committee consisting of not less than three persons. The minister and such of the church-wardens as are members of the council shall be ex-officio members of the standing committee, and the council may by resolution appoint other members of the standing committee from among its own members and remove any person so appointed. ^{Standing committee.}

(b) The standing committee shall have power to transact the business of the council between the meetings thereof subject to any directions given by the council.

15. The council may appoint other committees for the purpose of the various branches of church work in the parish and may include therein persons who are not members of the council. The minister shall be a member of all committees ex-officio. ^{Other committees.}

16. No proceedings of the council shall be invalidated by any vacancy of the membership of the council or by any defect in the qualification or election of any member thereof. ^{Validity of proceedings.}

17. Any question arising on the interpretation of this Appendix shall be referred to the bishop of the diocese and any decision given by him or by any person appointed by him on his behalf shall be final. ^{Interpretation.}

APPENDIX III

Rule 19.

CONDUCT OF POLL AT ELECTIONS BY THE ANNUAL MEETING

1. The chairman of the annual meeting shall fix a day (not being less than seven nor more than fourteen days from the day when the poll was demanded) and hours, and a place or places, for the taking of the poll; and shall cause a notice of the poll and of the day and hours and place or places thereof, signed by himself, to be forthwith affixed on or near to the principal door of the church and of every other building licensed for divine service in the parish, and the same shall remain so affixed until after the day of the poll. The hours of the poll must not be less than four, which need not be consecutive; but not less than two hours thereof must be before and not less than two hours thereof must be after six of the clock in the afternoon.

2. Votes may be tendered by the voter in person by a voting paper in the form set forth below, or in a substantially similar form, or by voting papers addressed to the person presiding over the election in the parish, and sent by post or otherwise delivered at the place in the parish fixed for the taking of the poll, and received by him at any time between the holding of the meeting and the hour appointed for the close of the poll. Voting papers must contain the names and addresses of voters and be signed by them.

3. After the close of the poll the votes shall be scrutinised and counted in one place by the presiding officer in the presence of such of the candidates for election, or persons deputed to attend on their behalf, as desire to be present.

4. Any voter shall be entitled to ascertain, by inquiry of the presiding officer, within seven days of the declaration of the result, whether his vote has been allowed or not, and a notice that voters are so entitled shall be appended to all notices announcing the result of the election.

FORM OF PAROCHIAL VOTING PAPER IN CASE OF A POLL

(A similar form of Voting Paper shall be used at the Annual Meeting in cases where voting papers are required.)

(Full Christian name and surname)

.....

(Address)

of
hereby give to the candidates upon the list overleaf [or upon the accompanying numbered voting paper] the votes which I have placed opposite to their names.

Signed

Date

NOTE.—Each voter has as many votes as there are seats to be filled, but may not give more than one vote to any one candidate.

Table of Enactments referred to in this Measure

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Church of England Assembly (Powers) Act, 1919	9 & 10 Geo. 5. c. 76.
Parochial Church Council (Powers) Measure, 1921	11 & 12 Geo. 5. No. 1.
Representation of the Laity Measure, 1929 ...	19 & 20 Geo. 5. No. 2.
House of Laity (Co-opted Members) Measure, 1937	1 Edw. 8 & 1 Geo. 6. No. 2.
New Parishes Measure, 1943	6 & 7 Geo. 6. No. 1.

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